

		and value of any uncashed checks, and the status of any unresolved issues. Within five (5) days of this ruling, Plaintiffs shall provide the court with a revised Proposed Final Order and Judgment reflecting this ruling. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendant.
6	30-2024-01426932 Petty vs. Renewal By Andersen LLC	The tentative ruling is to continue the hearing on Plaintiff Chandon Petty’s (“Plaintiff”) Motion for Approval of Settlement Under Private Attorneys General Act (“PAGA”) to December 21, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. There is an escalator clause in the settlement agreement, but this is a motion to have the settlement fully approved and thus a specific gross settlement amount must be approved on the granting of this motion. At this point in time the parties should know or be able to determine the number of aggrieved employees and qualifying pay periods based on the PAGA Period the parties are using. The following phrases must be removed from the release described in the settlement agreement: • “that accrue through the date the Court enters its order approving this Settlement” (Settlement § A(23) [the release period should match the PAGA Period that ends on August 29, 2025.] • “and (D) all claims that Plaintiff and/or the PAGA Members may have against the Released Parties relating to the payment, taxation, and allocation of attorneys’ fees and costs to Plaintiffs Counsel pursuant to this Settlement

		Agreement.” (Settlement § A(23) [the court will not approve this type of release].) • “PAGA Members may discover facts in addition to those they now know or believe to be true with respect to the subject matter of the Released Claims, but upon the Effective Date, PAGA Members shall be deemed to have, and by operation of the Settlement Approval shall have, fully, finally, and forever settled and released any and all of the Released Claims during the PAGA Period, without regard to the subsequent discovery or existence of such different or additional facts. PAGA Members agree not to sue or otherwise make a claim against any of the Released Parties that seeks recovery for any of the Released Claims during the PAGA Period.” (Settlement § B(3) [the court will not approve this language, especially injunctive language against the aggrieved employees].) The parties must provide the court with a copy of the cover letter to be sent to the aggrieved employees explaining the claims in this action, the release of claims, and an explanation of the payment provided. The letter also must explain that no claims for unpaid or underpaid wages have settled, and that this settlement is without prejudice to the pursuit of any such claims. Counsel should propose a realistic Final Report Hearing date and include it in the [Proposed] Order and Judgment, taking into account the time deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
7	30-2024-01428283 Winer vs. Phase II Systems	Plaintiff Christopher Winer’s (“Plaintiff”) Motion for Preliminary Approval of Class Action Settlement is GRANTED. However, Plaintiff must provide the court with a new [Proposed] Order that identifies the correct judge, and all future filings should identify Hon. David A. Hoffer as the judge for this action.